

Amendment No. 1 to HB2281

Crawford
Signature of Sponsor

AMEND Senate Bill No. 2330*

House Bill No. 2281

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 3, Chapter 7, is amended by adding the following as a new section:

3-7-115. Data access to records and information systems.

(a) For purposes of this section:

(1) "Agency":

(A) Means the administrative office of the courts and any department, agency, board, commission, office, or other instrumentality of the executive branch of state government, including the departments of state and the treasury; and

(B) Includes, but is not limited to, the following entities:

(i) Alcoholic beverage commission, created by § 57-1-102;

(ii) Sports wagering council, created by § 4-49-105;

(iii) Tennessee education lottery corporation, created by § 4-51-101;

(iv) Tennessee higher education commission, created by § 49-7-201; and

(v) Wildlife resources agency, created by § 70-1-301;

(2) "Data system" means any information system, database, case-management system, or comparable electronic record system used or maintained by an agency in the administration of its programs; and

(3) "Fiscal review committee staff" means the executive director of the fiscal review committee and employees of the committee acting within the scope of their official duties.

(b) Subject to subsection (d), fiscal review committee staff must be provided access to information and records of any agency that are directly related to the performance of the committee's statutory duties, including, but not limited to, direct electronic access to agency data systems and databases containing programmatic, financial, contractual, or performance-related information.

(c) Access under subsection (b):

(1) Includes the ability to inspect, examine, query, and retrieve information and records maintained in paper, electronic, or other form, including:

(A) Administrative records, contracts, grant agreements, and related documents;

(B) Financial and accounting records, including transaction-level data;

(C) Program eligibility, utilization, outcome, and performance data; and

(D) Records and data housed in enterprise, shared, or integrated data systems maintained by or on behalf of an agency; and

(2) Must be provided as requested by the fiscal review committee staff through:

(A) Direct, secure electronic access to relevant data systems and databases;

(B) Provision of data extracts, reports, or other machine-readable files; or

(C) On-site access to systems and records at agency locations, when necessary to protect system integrity or data security.

(d)

(1) This section does not require an agency to disclose information or provide system access where disclosure is prohibited by state law, federal law, a federal grant or participation agreement that has the force of law, or court order.

(2) If an agency asserts that state law, federal law, a grant or participation agreement, or a court order prohibits disclosure of requested information or denies system access pursuant to subdivision (d)(1), then:

(A) The agency must, within ten (10) business days of the request, provide to the fiscal review committee staff a written explanation identifying:

(i) The specific legal authority relied upon; and

(ii) The scope of information or access claimed to be restricted; and

(B) The agency and the fiscal review committee staff must make reasonable efforts to identify and agree upon:

(i) Redacted, de-identified, aggregated, or limited-access data that may be provided consistent with applicable law, the agreement, or the court order; and

(ii) Any technical or procedural accommodations, including on-site review or restricted-use workspaces, that allow the committee to perform its duties while maintaining legal protections.

(3) If the agency and the fiscal review committee staff are unable to reach an agreement regarding disclosure or access pursuant to subdivision (d)(2)(B), then the fiscal review staff must request that the attorney general and reporter, in consultation with the office of legal services, make a determination

regarding the disclosure of or access to the information in question. The attorney general and reporter shall reply to such a request as expeditiously as possible.

(4) If the agency being requested to provide information or system access is the office of the attorney general and reporter, and the office of the attorney general and reporter asserts that state law, federal law, a grant or participation agreement, or a court order likely prohibits disclosure of requested information or denies system access pursuant to subdivision (d)(1), then, to avoid a conflict of interest under subdivision (d)(3), the provision of information or system access depends on an agreement being reached in accordance with subdivision (d)(2).

(e)

(1) Confidential information and records obtained by fiscal review committee staff that are not prohibited from being disclosed or accessed under subsection (d), retain their confidential status while in the possession of the committee and are not public records under title 10, chapter 7.

(2) Fiscal review committee staff shall maintain appropriate safeguards for confidential information, including training, access controls, and secure storage and transmission consistent with applicable state information-security standards.

(3) Confidential information and records obtained under this section must be used solely for the performance of the committee's statutory duties. Fiscal review committee staff shall not disclose confidential information and records to any person, except:

(A) In aggregate, de-identified, or summary form in reports to the general assembly; or

(B) As otherwise expressly authorized by law.

(f) Unless a shorter period is required under other law, an agency shall provide information or access requested by fiscal review committee staff as soon as practicable and without unnecessary delay, and in no event more than fifteen (15) business days after actual receipt of the request, unless the agency and committee mutually agree to an alternative schedule for confidential information and records or voluminous or technically complex requests.

(g) This section does not:

(1) Authorize fiscal review committee staff to alter or update agency data systems or records;

(2) Diminish the authority of the comptroller of the treasury, the office of legislative budget analysis, or any other legislative office that has existing statutory access to agency data;

(3) Limit the ability of the general assembly to enact more specific data-access provisions for particular programs, agencies, or subject-matter domains; or

(4) Require direct electronic access to, or on-site inspection of, any information system maintained by a state law enforcement agency for criminal justice purposes, including systems that contain, process, transmit, or are capable of containing criminal history record information or other criminal justice information. Notwithstanding this subdivision (g)(4), information generated from such systems must be provided through published reports, including data extracts or other formats that preserve system security and integrity, as determined by the agency.

(h) The fiscal review committee staff may request services or advice from the office of legislative information systems and the office of legal services to assist the committee in the committee's implementation and administration of this section.

(i) Within thirty (30) days of the effective date of this act, and not later than January 1 of each year thereafter, all agencies shall provide in writing to the fiscal review committee staff a comprehensive listing of all data systems and databases used by the agency, including, but not limited to, the names of all data sets contained within any such data system or database, the types of data within each data set, and an explanation of the actual or potential uses of such data sets.

SECTION 2. Tennessee Code Annotated, Section 3-14-202(h), is amended by adding the following as a new subdivision:

(3) The commissioner of finance and administration shall provide the office of legislative budget analysis with full access, including access to budget requests submitted by the various departments and agencies, to the following:

(A) Any historical data from the state's Budget Entry Analysis and Reporting System (BEARS);

(B) The state's Sherpa budget formulation and management system, or any successor budget management system;

(C) Any information or data held by the office of evidence and impact (OEI), or any successor office;

(D) The state's enterprise resource planning system, Edison, or any successor enterprise resource planning system;

(E) The state's executive branch intranet system, TeamTN, or any successor intranet system; and

(F) Any systems used by the state for budget purposes, including artificial intelligence. For purposes of this subdivision (h)(3)(F), "artificial intelligence" means a machine-based system that can, for a given set of human-defined objectives, make predictions, recommendations, or decisions; influence real and virtual environments without significant human oversight; or that can learn from experience in an automated manner and improve such performance

when exposed to data sets; or is developed in any context, including software or physical hardware, and solves tasks requiring human-like perception, cognition, planning, learning, communication, or physical action.

SECTION 3. The heading in this act is for reference purposes only and does not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the heading in any compilation or publication containing this act.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.